

		Although Cross-Complainant does not appear to have been prejudiced by this and was able to file an opposition to this motion in a timely manner, in the future, Cross-Defendant must serve any supplemental papers on all parties who have appeared in this action. Cross-Defendant is advised that the court may deny this motion if he fails to supplement the motion papers or fails to serve the supplemental motion papers upon all parties who have appeared in this action. The court clerk shall give notice of this ruling.
2	Pipkin vs. Pipkin 30-2024-01430329	<u>Demurrer</u> Defendant Patricia Pipkin's to Aaron Pipkin's First Amended Complaint is SUSTAINED with 15 days leave to amend as to the 1st through 4th Causes of Action. <u>Pending Motion</u> Defendant Patricia Pipkin demurs to the entire First Amended Complaint for Damages (FAC) and to the 1st through 4th Causes of Action of the FAC filed by Plaintiff Aaron Pipkin. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters

		alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) In addition, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (<i>Geneva Towers Ltd. Partnership v. City and County of San Francisco</i> (2003) 29 Cal.4th 769, 781, quoting <i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403, citations omitted.) <u>1st Cause of Action (Intentional Interference with Expected Inheritance)</u> The courts of this state recognize a civil tort for intentional interference with expected inheritance. (See <i>Beckwith v. Dahl</i> (2012) 205 Cal.App.4th 1039, 1056 ["[W]e conclude that a court should recognize the tort of IIEI if it is necessary to afford an injured plaintiff a remedy."].) The elements of this claim are: (1) an expectation of receiving an inheritance; (2) intentional interference with that expectancy by a third party;
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		(3) the interference was independently wrongful or tortious; (4) there was a reasonable certainty that, but for the interference, the plaintiff would have received the inheritance; and (5) damages. (<i>Ibid.</i>) However, a defendant is not liable “when the expectancy is too speculative” or “when an adequate probate remedy exists.” (<i>Id.</i> at p. 1056.) Expectancy becomes too speculative, for example, when “no facts [were] alleged . . . showing that the plaintiff had any reasonable expectation of economic advantage which would otherwise have accrued to him” (<i>Id.</i> at p. 1055, quoting <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 330.) The court previously sustained the demurrer to the original Complaint because Plaintiff had failed to allege any facts to establish that the decedent had expressed an intent to bequeath 50% of his estate to Plaintiff and therefore, any expected inheritance was speculative. (See ROA #49 at pp. 2-3.) In his FAC, Plaintiff has now added allegations that: • “Throughout his life, Alfred [decedent] treated both of his sons, Aaron and Tobin, equally. He regularly expressed affection and support for Aaron. Alfred never told Aaron that he intended to disinherit him or reduce his share in any way.” (FAC, ¶ 10.) • “Based on Alfred’s consistent conduct and expressed intention to treat both sons equally, Plaintiff reasonably expected that Alfred would leave his estate in equal shares to Aaron and Tobin.” (FAC, ¶ 11.) However, the allegations that Plaintiff had an expectation of inheritance remain speculative. The FAC contains no allegations showing that the decedent intended to bequeath 50% of his estate to Plaintiff. In fact, Plaintiff attaches a copy of the Alfred L. Pipkin Trust signed by the decedent that expressly disinherits Plaintiff. (See FAC, Exh. 1 at p. 32, ¶ 3.)
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		Therefore, the court will sustain the demurrer to the 1st Cause of Action. <u>2nd Cause of Action (Elder Abuse)</u> The Elder Abuse and Dependent Adult Civil Protection Act (Act), Welfare and Institutions Code §§ 15600, <i>et seq.</i>, defines “abuse of an elder or dependent adult” to mean any of the following: (1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering. (2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering. (3) Financial abuse, as defined in Section 15610.30. (Welf. & Inst. Code, § 15610.07, subd. (a).) The rule that “statutory causes of action must be pleaded with particularity” applies to claims made under the Elder Abuse Act. (<i>Covenant Care, Inc. v. Superior Court</i> (2004) 32 Cal.4th 771, 790.) A plaintiff “must set forth factual allegations that sufficiently state all required elements of [a] cause of action . . . and, [a]llegations must be factual and specific, not vague or conclusory.” (<i>Rakestraw v. Cal. Physicians’ Serv.</i> (2000) 81 Cal. App. 4th 39, 43.) The court previously sustained the demurrer to the original Complaint because the Complaint did not set forth any factual allegations that showed that the decedent had been abused or how Plaintiff had standing to assert a claim for elder abuse on behalf of the decedent. (See ROA #49 at pp. 3-4.) The FAC adequately addresses the issue of standing by alleging that Plaintiff has standing under Welfare and Institutions Code section 15657.3(d) as an interested person and direct victim of the financial abuse. (See FAC, ¶¶ 12, 63; Welf. & Inst. Code, § 15657.3, subd. (d); Prob. Code, § 48, subd. (a).)
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		However, the FAC still does not set forth any allegations showing that the decedent was abused. While the FAC alleges that the decedent was vulnerable to manipulation and that Defendant obtained a transfer of property by deceiving the decedent into believing the diverted funds would satisfy Plaintiff's child support obligations, this transfer did not occur until after decedent's death. Thus, the FAC does not explain how any such actions harmed the decedent (rather than Plaintiff). Thus, the court will sustain the demurrer to the 1st Cause of Action. <u>3rd Cause of Action (Conversion)</u> The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. (<i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1240.) "[M]oney cannot be the subject of a conversion action unless a specific sum capable of identification is involved." (<i>Software Design & Application, Ltd. v. Hoefer & Arnett, Inc.</i> (1996) 49 Cal.App.4th 472, 485.) "[C]ases recognizing claims for the conversion of money 'typically involve those who have misappropriated, commingled, or misapplied specific funds held for the benefit of others.'" (<i>Voris v. Lampert</i> (2019) 7 Cal.5th 1141, 1152, quoting <i>PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP</i> (2007) 150 Cal.App.4th 384, 394.) As a result, "'a mere contractual right of payment, without more, will not suffice' to support a claim for conversion." (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal. App. 4th 221, 233, quoting <i>Farmers Ins. Exchange v. Zerín</i> (1997) 53 Cal.App.4th 445, 452; see also <i>Vu v. California Commerce Club, Inc.</i> (1997) 58 Cal.App.4th 229, 235 [where plaintiffs failed to "identify any specific, identifiable sums that the [defendant] took from them[, t]hat rendered the generalized claim for money not actionable
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		as conversion."].) The court previously sustained the demurrer to the original Complaint because the Complaint failed to allege that Plaintiff had any ownership or right to possession of any estate property and the Complaint failed to identify the specific property or specific sum capable of identification that was allegedly converted. (See ROA #49 at p. 4.) As explained above, the allegations of the FAC are insufficient to establish that Plaintiff had a reasonable expectation of inheritance and therefore, that Plaintiff had any ownership or right of possession of any estate property. In addition, the FAC fails to identify any specific property that was converted. Accordingly, the court will sustain the demurrer to the 3rd Cause of Action. <u>4th Cause of Action (Unjust Enrichment)</u> "[T]here is no cause of action in California for unjust enrichment. 'The phrase 'Unjust Enrichment' does not describe a theory of recovery, but an effect: the result of a failure to make restitution under circumstances where it is equitable to do so.'" (<i>Melchior v. New Line Productions, Inc.</i> (2003) 106 Cal.App.4th 779, 793, quoting <i>Lauriedale Associates, Ltd. v. Wilson</i> (1992) 7 Cal.App.4th 1439, 1448.) In other words, "[u]njust enrichment is 'a general principle, underlying various legal doctrines and remedies,' rather than a remedy itself." (<i>Melchior v. New Line Productions, Inc.</i>, <i>supra</i>, 106 Cal.App.4th 779, 793, quoting <i>Dinosaur Development, Inc. v. White</i> (1989) 216 Cal.App.3d 1310, 1315.) However, courts have held that a restitution or unjust enrichment cause of action may survive a demurrer where it adequately pleads a quasi-contractual claim (i.e., that there was an express contract but that it "was procured by fraud or is unenforceable or ineffective for some reason" or "is void or was rescinded." (See <i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 231, quoting <i>McBride v. Boughton</i> (2004) 123 Cal.App.4th 379, 388, and <i>Lance Camper Manufacturing Corp. v. Republic</i>
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		<i>Indemnity Co.</i> (1996) 44 Cal.App.4th 194, 203; see also <i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 661 [“a typical cause of action involving [a restitution] remedy is ‘quasi-contract.’”].) The court previously sustained the demurrer to the original Complaint because the Complaint failed to allege any quasi-contractual claim for which restitution is an available remedy. (See ROA #49 at p. 5.) The FAC alleges that “[o]n information and belief, Patricia convinced Alfred to make her and her children the beneficiary of his trust in place of Aaron and that the 50% of his estate would but utilized to reduce and/or satisfy any and all remaining child support arrears. Once the child support payments were paid off, the remainder of the 50% would go to Patricia and to Marlena and Jakob.” (FAC, ¶ 30.) The FAC also pleads that “[a]fter Alfred’s death, Patricia received distributions pursuant to the altered trust. Contrary to her representations to Alfred, she has not used the trust distributions to offset Aaron’s child support arrears. Instead, she has attempted to collect additional support payments from Aaron while retaining the trust benefits for herself.” (FAC, ¶ 33.) The FAC then asserts that “Patricia is ‘double-dipping’ on her child support payments. First, she is getting money from the Pipkin Trust that should be used to offset the support arrears and she is also demanding payments from Aaron.” (FAC, ¶ 42). Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true. (See <i>Pridonoff v. Balokovich</i> (1951) 36 Cal.2d 788, 792.) However, Plaintiff has not set forth the information on which he bases his belief that Patricia convinced the decedent to make her and her children the beneficiaries of his trust in place of Plaintiff and that 50% of his estate would but utilized to reduce and/or satisfy any and all remaining child support arrears.
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		In any case, even if Plaintiff could properly allege this on information and belief, the 4th Cause of Action still fails. Here, Plaintiff is not seeking an offset of the payments he owes to Defendant (nor can he in this case, as the family law court has exclusive jurisdiction over child support matters). Rather, under this cause of action, "Plaintiff seeks a remedy of the 50% share of the trust estate received by Patricia, Marlena, and Jakob, together with all proceeds, distributions, and profits derived therefrom, for the purpose of restoring those assets to Plaintiff." (FAC, ¶ 77.) The FAC has not established a quasi-contractual claim entitling Plaintiff to a 50% share of the trust estate. At best, the FAC has alleged a basis to offset monies paid by the trust against Plaintiff's child support obligations, which is a claim that must be made in the family law court. Therefore, the court will sustain the demurrer to the 4th Cause of Action. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "[l]iberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.)
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		Here, Plaintiff requests leave to amend the FAC and there is the possibility that allegations may be made to support one or more of the causes of action. Therefore, the court will exercise its discretion and grant Plaintiff one final opportunity to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant shall give notice of this ruling.
3	Arguello vs. Jaguar Land Rover North America, LLC 30-2025-01521732	<u>Motion to Strike</u> Defendant Jaguar Land Rover North America, LLC's Motion to Strike is taken OFF CALENDAR pursuant to the Notice of Withdrawal of Defendant's Motion to Strike Complaint filed June 16, 2026. (See ROA #54.)
4	T. H. vs. AV Investment & Consultant Group, LLC 30-2024-01404661	<u>Motion to Consolidate</u> Defendants AV Investment & Consultant Group, LLC's; Andrew Vo's; and Ngoc Dung's Motion to Consolidate is CONTINUED to August 4, 2026 at 9:00 a.m. in Department N15. Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung are ORDERED to file and serve supplemental motion papers that include the Declaration of Walter Emil Teague III, no later than July 10, 2026. Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung are ORDERED to